

FL-25-003301 MCNEELY VS MCNEELY

County: stanislaus

Division: Family Law

Department: 14

Hearing date: 2026-03-16

Motion: Respondent's Request for Order re Motion to Quash, etc.—HEARING REQUIRED. Proof of mail service of Petitioner is on file at the same address Petitioner listed on the petition. Petitioner has not filed a Responsive Declaration or other opposition. However, Respondent previously filed a motion to quash on the same grounds that was denied by the Court on March 16, 2026, for the reasons specified in the Court's Findings and Order After Hearing (FOAH). Ordinarily, a party may not file a new motion seeking the same orders that were previously denied, i.e., a "renewal," without demonstrating by affidavit "what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc., § 1008(b).)

Respondent did not do so. That said, Respondent attaches a file-marked document purporting to be a family law Judgment (FL-180) signed on April 20, 2026, by Commissioner Shaver of Merced County Superior Court, that terminates the marital status of the parties to this action effective August 23, 2026. The case here was filed on December 25, 2025, but Respondent was not served with petition and summons until January 13, 2026, according to the Proof of Service of Summons on file. It is not clear from Respondent's attachments when Petitioner was served with process in the Merced County case, but the judgment entered clearly resulted from taking Petitioner's default without an agreement, i.e., a pure default. As before, Respondent has not provided properly certified or authenticated records and, without notice and opportunity to be heard, the Court may not take judicial notice of these documents on its own motion. (Evid. Code, §§ 452(d), 455(a).) Accordingly, the Court hereby gives notice to all parties that it intends to do so and will allow the parties to be heard. If, in fact, a valid judgment has been entered in the Merced County action, and marital status has already been terminated, then that renders a legal separation petition moot as a matter of law. Lastly, the Court issued an Order to Show Cause to Petitioner for the failure to appear at the Case Management Conference of June 5, 2026, and for failure to prosecute this action as required, and to appear and explain why the case at bar should not be dismissed. That hearing is set for the same date and time as Respondent's Request for Order. Consequently, if Petitioner does not appear, or fails to show good cause to the contrary, then the Court will dismiss this case and Respondent's Request for Order will then be dropped as moot. The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/family-law-tentative-rulings>

Source SHA-256: 99b780193ddcdb24365e0e2668de1c0e41cfd561992a36534a8c8349043f1763

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